

## 23STCV12335 23STCV12335

County: los-angeles

Division: Civil Law and Motion

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MICHAEL CLAYTON v. XPO LOGISTICS, INC., ET AL.

CASE NO.: 23STCV12335

HEARING: 08/11/2026 @ 9:30 AM

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### TENTATIVE ORDER

Defendant and Cross-Complainant, Jong Uk Byun's motion for a determination of good faith settlement is GRANTED.

Moving party to give notice.

Defendant and Cross-Complainant, Jong Uk Byun moves for a determination of good faith settlement.

### Background

On March 31, 2023, Plaintiff Michael Clayton (Plaintiff) initiated this action against Defendants XPO Logistics Freight Inc., Alameda Engle Properties, LLC, Doe Fence Company, Secure Mobile Destruction, Inc., and Does 1 to 50. Plaintiff alleges that, during a delivery on June 17, 2021, at 8440 Alameda Street in the City of Los Angeles (Subject Premises), he was electrocuted by an electrified fence that enclosed the Subject Premises. It is further alleged that, at the time of the incident, the electrified fence discharged over 7,000 volts of electricity, did not have a perimeter fence, and

did not have any warning signs visible to Plaintiff. The only warning sign was located on the opposite side of the fence facing the opposite direction of the Plaintiff. The complaint asserts four causes of action: (1) negligence; (2) products liability; (3) premises liability; and (4) strict liability.

On August 16, 2024, Plaintiff filed an Amendment to Complaint naming Central Metal, Inc. (CMI) as Doe 4. On February 6, 2025, Plaintiff filed an Amendment to Complaint naming Byun as Doe 6.

On May 19, 2025, Byun filed a Cross-Complaint for equitable indemnity and contribution against XPO Logistics Freight Inc., Amarok LLC, Fleet Yards, Inc., and Moes 1 to 50.

#### Legal Standard

“Any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors.” (Code Civ. Proc., § 877.6, subd. (a).) A judicial determination of good faith “bar[s] any other joint tortfeasor...from any further claims against the settling tortfeasor...for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.” (Code Civ. Proc., § 877.6, subd. (c).)

In evaluating whether a settlement has been made in good faith, courts consider the following factors, as set forth by the California Supreme Court in the landmark case *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488 [Tech-Bilt]: (1) “a rough approximation of plaintiffs’ total recovery”; (2) “the settlor’s proportionate liability”; (3) “the amount paid in settlement”; (4) “the allocation of the settlement proceeds among plaintiffs”; (5) “a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial”; (6) the settling party’s “financial conditions and insurance policy limits”; (7) any evidence of “collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants.” (Id. at 499.) “The issue of the good faith of a settlement may be determined by the court on the basis of affidavits served with the notice of hearing, and any counteraffidavits filed in response, or the court may, in its discretion, receive other evidence at the hearing.” (Code Civ. Proc., § 877.6, subd. (b).)

The “good faith” concept in Code of Civil Procedure section 877.6 is a flexible principle imposing on reviewing courts the obligation to guard against the numerous ways in which the interests of nonsettling defendants may be unfairly prejudiced. (Rankin v. Curtis (1986) 183 Cal. App. 3d 939, 945.)

#### Discussion

Byun moves for an order determining that that the settlement entered into between him, Plaintiff, and CMI was entered in good faith. This motion is unopposed.

“[O]nly when the good faith nature of a settlement is disputed, it is incumbent upon the trial court to consider and weigh the Tech-Bilt factors. That is to say, when no one objects, the barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” (City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1261.)

Byun states that this action arises out of an electrocution incident on June 17, 2021, when Plaintiff came into contact with an electrified fence located in a truck fleet parking lot known as the “Huntington Park Yard.” Byun is the owner of CMI which uses the Huntington Park Yard to run a scrap metal business. Byun provides a copy of the Settlement and Release Agreement (Agreement) entered into between Byun, CMI, and Plaintiff in which Byun and CMI agree to pay \$325,000, which represents over 42% of Plaintiff’s medical specials identified in discovery. (Daley Decl., ¶ 5.) Byun states that this Agreement was reached after engaging in private mediation.

Upon review of the moving papers and declaration and based on the lack of any opposition, the Court finds that this settlement was entered into in good faith.

Byun’s motion for an order determining that the settlement entered into between Byun, Plaintiff, and CMI was made in good faith is GRANTED.